

1. PURPOSE AND SCOPE

- 1.1 This procedure describes ASI North America PB LLC (ASI NA) processes for identifying and managing findings issued by ASI NA to Conformity Assessment Bodies (CABs).
- 1.2 This procedure also describes the process to be followed by CABs to respond to ASI NA findings, including – associated deadlines and potential implications for failure to meet deadlines.
- 1.3 This procedure also defines the processes to be carried out by Finding Reviewers in managing, addressing and evaluating Nonconformities (NCs) and Compliance Follow-ups (CFUs) raised by ASI NA Assessors.
- 1.4 This procedure covers all CABs, all Certification Schemes accredited by ASI NA and all findings raised during ASI NA's Accreditation activities.

2. CHANGE HISTORY

Version Number	Date of approval	Description of changes
1.0	20 August 2022	First publication
2.0	12 December 2023	Changes to sections 9, 10 and 11 to avoid different approaches between ASI entities Main change: NC deadlines (now majors 3 months and minors 12) to replace derogation ASI NA-DER-20-001 issued on 12.09.23 and use of initial and closure responses similar to ASI (see Table 1) Additional clarifications to section 10 (new clauses 10.2 and 10.3) and section 11 (new clauses 11.2, 11.4, 11.7 and 11.10).

3. TERMS AND DEFINITIONS

- 3.1. All terms and definitions, where not defined below, are provided in the ASI NA Glossary ([ASI NA-INF-20-103](#)).
 - 3.1.1. **Assessment Finding:** Results of the evaluation of the Assessment evidence collected against Assessment criteria. Findings may indicate Conformity or Nonconformity.
 - 3.1.2. **Conformity:** The fulfillment of a requirement.
 - 3.1.3. **Finding Reviewer:** ASI NA Assessor who is responsible for the follow-up and evaluation of NCs and Compliance Follow-ups, following the Assessment Report for the applicable Assessment being signed off and submitted to the CAB.
 - 3.1.4. **Nonconformity (NC):** Non-fulfilment of a requirement.
 - 3.1.5. **Compliance Follow-up (CFU):** Any finding identified during any ASI NA Assessment, in which ASI NA identifies issues at CH level that are not related to the CAB's performance but for which the CAB has to directly follow up with the CH. Depending

on the criticality, ASI may request the CAB to follow up within an abbreviated timeline or immediately.

Note: Immediate follow-up may be required if the situation identified poses an immediate risk to (e.g.) workers and/or high conservation values.

- 3.1.6. **Opportunity For Improvement (OFI):** Any finding where the evidence observed indicates that a requirement has been met but based on ASI NA Assessment team's professional experience and knowledge, improved performance and/or implementation may be possible.
- 3.1.7. **Persistent NC:** An NC raised against the same normative reference, concerning the same subject matter already referred to in an NC previously raised and signed off and for which the status is still open.
- 3.1.8. **Recurrent NC:** An NC raised against the same normative reference and concerning the same subject matter, already referred to in an NC previously raised for which the status is closed.
- 3.1.9. **Root Cause Analysis (RCA):** Analysis to determine the root cause of a problem including an evaluation of the extent and scale of the problem identified to determine if it has occurred elsewhere.
- 3.1.10. **Repeated:** If an Assessor finds multiple instances of the same NC within a single Assessment, it may be considered to be "Repeated" and may therefore be raised as a Major NC.
- 3.1.11. **Systemic:** An NC can be said to be Systemic if it is caused by an issue at a CAB system level. This means that the nonconforming system has been put in place by the CAB in a way that produces nonconforming outcomes by design, as opposed to an NC that occurs because a CAB system – though designed correctly – was not followed correctly.

4. ASSOCIATED DOCUMENTATION

4.1	Documents that are relevant for the application of this procedure.	ASI NA-INF-20-103-Glossary ASI NA-MAN-20-101-Accreditation Manual ASI NA-PRO-20-109-Appeals & Challenges ASI NA-PRO-20-111-Complaints
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5. GENERAL

- 5.1. ASI NA findings may be identified during Assessments (irrespective of the scope evaluated) or as a result of other sources of information (for example Complaint, or stakeholder information).
- 5.2. ASI NA findings shall be raised if objective evidence of Conformity with an Accreditation Requirement is not provided by a CAB when requested.
- 5.3. Grading of findings may be adjusted as a result of TR, Appeal investigations, and during NC follow-up activities.
- 5.4. ASI NA has three types of findings:
 - 5.4.1. Nonconformities (NCs)
 - 5.4.2. Compliance Follow-up (CFU)
 - 5.4.3. Opportunity for Improvement (OFI)
- 5.5. NCs shall only be raised against the following requirements:
 - 5.5.1. Scheme Owner (SO) Accreditation Requirements, including ISO requirements whenever relevant.
 - 5.5.2. ASI NA Accreditation Requirements.
- 5.6. NCs shall not be raised by ASI NA against SO certification requirements. However, certification requirements may be used as part of the objective evidence presented in an ASI NA finding.
- 5.7. Findings may also be raised if a CAB is not in Conformity with the requirements defined by the CAB's own documented policies and procedures.
- 5.8. Findings shall not be responded to or closed before the corresponding Assessment Report is finalized.
- 5.9. ASI NA reserves the right to schedule additional Assessments (e.g., Desk Review, verification assessment, etc.) for finding follow up activities, if significant additional activities are required. The Assessment shall follow normal ASI NA Assessment procedure.

6. RECORDING OF FINDINGS

- 6.1. At the closing meeting, ASI NA shall report on the findings identified during the Assessment and present in writing any NCs.
- 6.2. ASI NA shall issue a detailed Summary of Findings (SOF) report to the CAB within 5 calendar days of the Assessment closing meeting.
- 6.3. For each NC, the following information shall be recorded in the SOF:
 - 6.3.1. The specific Accreditation Requirement that the CAB was not able to demonstrate Conformity with.
 - 6.3.2. An informative subject that refers directly to the issue in question.
 - 6.3.3. Proposed grading of the finding.
 - 6.3.4. Description of how the CAB has failed to demonstrate Conformity with the Accreditation Requirement cited.

- 6.3.5. Objective Evidence that demonstrates how the CAB was not able to demonstrate Conformity with the Accreditation Requirement (including a grading justification in the case of Major NCs).
- 6.4. For CFUs, the following information shall be recorded in the SOF:
 - 6.4.1. The specific Certification Requirement that the issue identified relates to. This will be recorded in the evidence section of the finding.
 - 6.4.2. An informative subject that refers directly to the issue in question.
 - 6.4.3. Description of the issue identified.
- 6.5. If there are disagreements about any of the findings, these shall be recorded in the SOF and/or final Assessment Report under each finding.
- 6.6. Findings presented at the closing meeting may differ from the findings presented in the SOF report.
- 6.7. All ASI NA Assessment Reports undergo a TR and a sign-off process. Because of these internal processes, the grading and wording of findings may change between the SOF and the final Assessment Report.
- 6.8. If a finding is upgraded following TR (e.g. from Minor to Major or from OFI to Minor), the CAB shall be notified and given additional 5 calendar days for any potential Errors of Fact (EOF). The 5 additional days shall also be considered in the report finalization timelines.
- 7. GRADING OF NCs**
 - 7.1. ASI NA NCs shall be graded as Major or Minor.
 - 7.2. A NC may be graded Major if one or more of the following apply:
 - 7.2.1. A NC that persists over time (i.e. that is not a one-off occurrence but there is evidence of the recurrence or persistence of the same NC over a significant period of time).
 - 7.2.2. A NC that is Repeated.
 - 7.2.3. A minor NC not adequately addressed by the CAB within the established timeline.
 - 7.2.4. Absence, or Systemic failure, of one or more element/s of the CAB's Management System (fundamental failure to achieve the objective of the relevant Accreditation Requirement).
 - 7.2.5. Where an Accreditation Requirement has not been fulfilled because one or more major/critical NCs, found at Certificate Holder level, have demonstrably not been correctly identified, graded or addressed by the CAB.
 - 7.2.6. A NC that demonstrably affects a wide area or causes significant damage and/or critically affects the integrity of the Certification Scheme (e.g. broken supply chain) or Accreditation Body (e.g. lack of management commitment to impartiality).
 - 7.3. Any NC that does not meet the criteria of a Major NC shall be considered Minor. Minor NCs are usually isolated or non-systemic failures of Accreditation Requirements that do not significantly compromise the validity of certification decision-making or the functioning of the CAB's management system.

- 7.4. Multiple Majors raised during a single Assessment may warrant potential Sanctions as per the Accreditation Manual (ASI NA-MAN-20-101) if ASI NA concludes that the issues raised are critical.

8. CAB RESPONSE TO FINDINGS

- 8.1. The CAB shall respond to findings via the ASI NA CAB Portal. The CAB may only submit its response via email in cases where their CAB Portal login is not functional.
- 8.2. The CAB may file EOF for individual findings within 10 calendar days of receiving the SOF.
- 8.2.1. ASI NA may grant a deadline extension if the CAB sends a written request via email before the deadline is reached. The request shall contain a justification explaining why the CAB is not able to file EOF within the original timeline.
- 8.3. CAB responses in the CAB Portal will vary depending on the finding type:
- 8.3.1. For NCs, the CAB shall submit Root Cause Analysis (RCA), Correction (C) and Corrective Action (CA).
- 8.3.2. For CFUs, the CAB shall submit full details of any Correction.
- 8.3.3. For OFIs, the CAB is not required to submit a response, but is strongly encouraged to respond. If a response is uploaded it shall be in the RCA and/or Preventive Action (PA) field/s. ASI NA will normally review the response to an OFI during the Head Office (HO) Assessment.
- 8.4. For each NC the CAB shall:
- 8.4.1. carry out a RCA to identify the cause and extent of the NC;
- 8.4.2. specify any Corrections made within the Correction (C) field. This field must indicate actions taken to address not only the instance/s identified by the Assessor but also any other instances that may exist, as identified in the analysis of the extent of the issue. If a Correction is not necessary, a justification must be included in the Correction (C) field explaining why no Correction is necessary;
- 8.4.3. specify any Corrective Actions carried out within the Corrective Action (CA) field. If a CA is not necessary, a justification must be included in the CA field explaining why no CA is necessary;

9. TIMELINES FOR CABs TO ADDRESS NCs AND IMPLICATIONS OF NON-ADHERENCE WITH DEADLINES

- 9.1. All ASI NA findings shall become effective once the Assessment Report has been finalized and sent to the CAB and shall be fully addressed and closed before the Deadline for Closure specified within the finding listing on the AMS. Default timelines are specified with Table 1 below, but these may be subject to change under certain circumstances:
- 9.1.1. All Major NCs shall be closed within 3 months by default.
- 9.1.2. All Minor NCs shall be closed within 12 months by default.
NOTE that when Reaccreditation is approaching minor deadlines will be shortened to ensure these are closed before Reaccreditation may be granted.
- 9.1.3. All CFUs shall be addressed/closed within 12 months by default. The 12 months includes time for the CAB to carry out its audit at the client level.

- 9.1.4. OFIs shall have a deadline of 12 months. CABs are not obliged to respond to OFIs but are strongly encouraged to respond.

Table 1: Finding Timelines

Table 2.1 Finding Timelines					
Grade	Deadline for submission of initial responses (RCA & C)	Deadline for ASI evaluation of RCA & C	Deadline for submission of closure responses	Deadline for ASI evaluation of closure responses	Deadline for closure
Major	60 days from final Assessment Report date	14 days from deadline for initial CAB responses	2 month from final Assessment Report date	30 days from date closure responses are uploaded	3 months from final Assessment Report date
Minor	30 days from final Assessment Report date		11 months from final Assessment Report date		12 months from final Assessment Report date
Compliance Follow-up	Not applicable		11 months from final Assessment Report date	30 days from date when responses have been uploaded	12 months from final Assessment Report date
OFI	Not applicable				12 months from final Assessment Report date

- 9.2. These timelines are mandatory for both accredited and applicant CABs– consequences for failing to meet these timelines are detailed in clauses 9.8 – 9.12.
- 9.3. Applicable Sanctions for applicant CABs shall be a formal warning letter in the first instance followed by withdrawal of application if the issue is not resolved promptly.
- 9.4. If the CAB requires more than the established deadlines to close any NC, the CAB shall submit a Corrective Action plan justifying why this can only be implemented later. This request shall be made before the deadline for submission of closure responses.
- 9.4.1. Following an extension of timelines as above, no subsequent extension request by the CAB shall be considered unless those circumstances are beyond the CAB's control.
- 9.5. The deadline for OFIs shall be set at 12 months from the date the final Assessment Report is shared with the CAB. CABs are recommended to respond to OFIs.
- 9.5.1. Evaluation of CAB responses to OFIs shall normally be carried out during the HO Assessment.
- 9.5.2. OFIs are not automatically upgraded to NCs. However, OFIs may be used by ASI Assessors in their evaluation of CAB compliance with requirements and in evaluating recurrence of issues.
- 9.5.3. If no CAB responses have been received at the time the OFI's deadline expires, the status of the finding shall be set to 'Expired'.
- 9.6. The deadline for CFUs shall be set with a maximum timeline of 12 months (depending on criticality) from the date the final Assessment Report is shared with the CAB.

- 9.7. If any deadline is extended, subsequent deadlines may be extended by the same amount at ASI's sole discretion.
- 9.8. ASI NA reserves the right to require the CAB to address findings within shorter timelines than those stated above, providing a justification.
- 9.9. Deadlines shall not be set until the Final Assessment Report is sent to the CAB. Any deadlines that are indicated before that shall be temporary and non-binding.
- 9.10. Deadlines are as indicated within the relevant finding listing on the AMS / CAB Portal. Deadlines indicated elsewhere (eg. those within the final report) are subject to change and adjustment, so the finding listing should be consulted when looking for an indication of normative deadlines.
- 9.11. If the CAB does not upload initial responses (RCA & C) to the CAB Portal for any NC before the deadline for submission of initial CAB responses, ASI may implement Sanctions as per the ASI NA Accreditation Manual ([ASI NA-MA-20-101](#)).
- 9.12. If the CAB does not upload NC response(s) on the CAB Portal before the deadline for submitting a response(s), or if the response(s) submitted do not demonstrate Conformity with applicable requirements, ASI NA may take the following actions:
 - 9.12.1. Minor NCs shall be upgraded to Major NCs. The deadline for submission of closure responses shall be extended by 3 months from the date of upgrade, in line with default major NC timelines.
 - 9.12.2. For Major NCs (including NCs that were upgraded and not closed as per 9.12.1 above), Sanctions shall be implemented as per ASI NA Accreditation Manual ([ASI NA-MAN-20-101](#)).
- 9.13. If a CFU has reached its deadline for closure and the CAB has not demonstrated that appropriate action has been taken to address the issue identified, then ASI may carry out the following actions:
 - 9.13.1. The finding shall become a NC and shall be updated so that it meets all requirements specified in 6.3 including grading justification.
 - 9.13.2. ASI NA shall provide justification of why the CFU could not be closed.
 - 9.13.3. The deadline for submission of responses will be extended in line with standard NC timelines.

10. ASI NA EVALUATION OF CAB RESPONSES

- 10.1. ASI NA shall provide a response to all EOF which have been provided within the deadline specified in clause 8.2. ASI NA's response to EOF will only be visible once the final Assessment Report is shared with the CAB.
- 10.2. ASI NA should evaluate initial responses (RCA & C) for NCs within 14 days of the deadline for submission of initial CAB responses.
- 10.3. ASI NA should evaluate closure responses (CA including details of actions taken and any updates or revisions to RCA and C) and their effectiveness in addressing the identified root

cause to deliver conforming outcomes within 30 days of them being uploaded to the CAB Portal.

- 10.4. If ASI NA does not consider the response proposed to be sufficient in addressing the issues identified and delivering Conformity with the relevant Accreditation Requirement, ASI NA shall not close the finding and shall justify its conclusion in the CAB Portal. The CAB shall revise its response accordingly.
- 10.5. Evidence of effectiveness of all applicable C and/or CA must be deemed satisfactory before a finding may be closed. The CAB must demonstrate Conformity with the relevant Accreditation Requirement. It is not the responsibility of ASI NA to search for conforming instances.

Note: Where evidence of effective implementation for C and/or CA is in a language other than English, a translation shall be provided by the CAB within established timelines and at the CAB's own expense. In some circumstances where CAB responses relate to in-country legal issues, ASI NA may require a notarized translation. Additional time may be granted to supply this evidence.

- 10.6. If ASI NA does not consider the CAs to be effective (following the review of effectiveness), and there is evidence of recurrence after the CAs were implemented, ASI NA shall immediately issue a Major NC and the CAB shall have 30 days to address it.
- 10.7. For CFUs, ASI NA shall evaluate the CAB response within 30 days of submission of the proposed Correction.

11. PERSISTENT AND RECURRENT FINDINGS

- 11.1. When a NC is identified during any Assessment and found to be a Persistent or Recurrent NC, as defined in clauses 3.1.7 and 3.1.8, the Assessor shall carry out the following:
 - 11.1.1. A new NC shall not be raised;
 - 11.1.2. If the previous (existing) finding is still open, the additional evidence shall be added within the corresponding field in the CAB Portal, together with the date, the new Assessment number and description;
 - 11.1.3. Clauses 11.3 onwards shall apply.
- 11.2. A new NC shall be raised as a separate NC in any of the following situations (and clauses 11.3 onwards shall not be applied) - where the existing NC:
 - 11.2.1. is closed
 - 11.2.2. is still open and must be addressed in order for an ongoing reaccreditation process to continue;
 - 11.2.3. has not yet been finalized (signed-off) unless the new and old NC have been raised by the same Assessor;
 - 11.2.4. is under challenge/appeal;
 - 11.2.5. has a deadline for submission of closure responses that falls within 30 calendar days of the CAB being notified of the new finding.
- 11.3. The CAB may request ASI NA to raise a new NC instead of a Persistent NC, if the CAB can demonstrate that the subject matter and potential cause are different to the existing open NC. ASI NA shall provide a written justification to the CAB when such requests are rejected.

Note: If the Assessor rejects a request to raise a new NC after the SOF stage this will be highlighted for consideration during TR.

- 11.4. The Assessor shall evaluate if the grading of the existing NC is still justified or needs to be changed. The Assessor shall justify their conclusion regarding the grading, even if it is to maintain the previous grading, within the NC's grading history.
- 11.5. The CAB shall be informed that the existing NC has been changed, and will also receive a report of the updated finding from the Assessor, within the SOF for the new Assessment.
- 11.6. The EOF process defined in section 8.2 and the TR processes also apply to persistent/recurrent findings.
- 11.7. The ASI CAB Portal allows the CAB to update the EOF field for the existing finding. For consistency reasons, the CAB shall not delete prior EOF information once it has been uploaded. Newer submissions shall separately describe any new EOF for the new evidence under an additional dated entry below the previous entry/ies.
 - 11.7.1. ASI NA shall respond to each new EOF via the CAB Portal under an additional dated entry below the previous entry/ies.
- 11.8. To ensure the coherence of Assessment conclusions, the Assessor shall mention in the background of the Assessment Report any Persistent NC/s for which evidence has been added.
- 11.9. The CAB shall ensure that all responses address any nonconforming circumstances identified in the additional evidence. If necessary, they shall update their existing entries for RCA, C and/or CA with additional comments/plans for addressing the additional evidence.
- 11.10. NC timelines remain unchanged unless an existing NC is upgraded; in this case the new timelines apply from the date the final report for the newer Assessment is sent.
- 11.11. A CAB can appeal additional evidence in Persistent NCs following the ASI NA Appeal and Challenges procedure ([ASI NA-PRO-20-109](#)), once the NC has been finalized (technically reviewed and signed off).
- 11.12. Persistent and Recurrent NCs are used by ASI NA to evaluate CAB performance over time.

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